

Amendment No. 1 to SB2428

Briggs
Signature of Sponsor

AMEND Senate Bill No. 2428*

House Bill No. 2397

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 7, Chapter 51, is amended by adding the following as a new part:

7-51-2801.

As used in this part:

(1) "Local governmental entity" means a governing body, board, commission, committee, department, or law enforcement agency of a municipality, county, or other political subdivision of this state; and

(2) "Veteran" means a person who has been honorably discharged from the United States army, navy, air force, marine corps, space force, or coast guard, or a member of the reserve components, as defined in 10 U.S.C. § 10101, who performs active federal service in the armed forces of the United States.

7-51-2802.

(a) If a local governmental entity extends invitations to interview candidates, whether for appointment or promotion, and the pool of candidates includes a veteran, then the local governmental entity shall invite the veteran to interview.

(b) If a veteran is in the pool of candidates and meets the minimum qualifications for the position, and the skills, abilities, competencies, and knowledge of the veteran and another applicant being interviewed for the position are equal, then preference must be given to the veteran for the position.

(c) A local governmental entity that passes over a veteran and selects another person to fill the position shall file with the entity's human resources department, within thirty (30) days, the reasons for so doing, which reasons will become a part of the veteran's record, but must not be made available to anyone other than the veteran. Such documentation must be retained by the human resources department for a minimum of ten (10) years.

(d) If a local governmental entity extends invitations to interview candidates, whether for appointment or promotion, and the pool of candidates includes the spouse or surviving spouse of a veteran, then the local governmental entity shall invite the spouse or surviving spouse of the veteran to interview, if the spouse or surviving spouse is a qualified voter in this state or has been a resident of this state for two (2) years preceding such person's application, and any of the following circumstances exists:

(1) As a result of such military service, the veteran suffered a one hundred percent (100%) service-connected disability or is permanently and totally disabled; or

(2) The veteran died in the line of duty during such military service.

(e) An application form used by a local governmental entity must include the option for the applicant to declare that the applicant is a veteran or a qualifying spouse or surviving spouse under subsection (d). The applicant is required to provide the necessary documentation to prove their status as a veteran or a qualifying spouse or surviving spouse under subsection (d).

(f) This section is in addition to, and does not supersede, any federal laws or rules regarding the hiring of veterans.

SECTION 2. Tennessee Code Annotated, Section 8-30-307, is amended by deleting the section and substituting instead:

(a) As used in this section:

(1) "State governmental entity" means a governing body, board, commission, committee, department, agency, or law enforcement agency of this state; and

(2) "Veteran" means a person who has been honorably discharged from the United States army, navy, air force, marine corps, space force, or coast guard, or a member of the reserve components, as defined in 10 U.S.C. § 10101, who performs active federal service in the armed forces of the United States.

(b) If a state governmental entity extends invitations to interview candidates, whether for appointment or promotion, and a veteran is a candidate, then the state governmental entity shall invite the veteran to interview.

(c) If a veteran is in the pool of candidates and meets the minimum qualifications for the position, and the skills, abilities, competencies, and knowledge of the veteran and another applicant being interviewed for the position are equal, then preference must be given to the veteran for the position.

(d) A state governmental entity that passes over a veteran and selects another person to fill the position shall retain documentation showing the reasons for so doing, but which must not be made available to anyone outside of the state governmental entity other than the veteran. Such documentation must be retained by the commissioner for a minimum of ten (10) years.

(e) If a state governmental entity extends invitations to interview candidates, whether for appointment or promotion, and the pool of candidates includes the spouse or surviving spouse of a veteran, then the state governmental entity shall invite the spouse or surviving spouse of the veteran to interview, if the spouse or surviving spouse is a qualified voter in this state or has been a resident of this state for two (2) years preceding such person's application, and any of the following circumstances exists:

(1) As a result of such military service, the veteran suffered a one hundred percent (100%) service-connected disability or is permanently and totally disabled; or

(2) The veteran died in the line of duty during such military service.

(f) An application form used by a state governmental entity must include the option for the applicant to declare that the applicant is a veteran or a qualifying spouse or surviving spouse under subsection (e). The applicant is required to provide the necessary documentation to prove their status as a veteran or a qualifying spouse or surviving spouse under subsection (e).

(g) This section is in addition to, and does not supersede, any federal laws or rules regarding the hiring of veterans.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.